

any words of limitation, B. takes the equitable fee; for the whole estate passed to the trustees, and whatever interest they took was given in trust for B. (a). But if an estate be conveyed by *deed* unto and to the use of a trustee and his heirs, in trust for the settlor for life, and after his death upon trust for his children simply, without the word *heirs*, [or, in deeds executed since the 31st December, 1881, the words "in fee simple" or "in tail" (b)], the children by analogy to legal limitations take an estate for life only (c). Should *renewable leaseholds for lives* be conveyed by deed to trustees and their heirs upon trust for A., it has been held that from the nature of an estate *pur autre vie*, A. takes the absolute interest (d).

3. **Force of technical terms.** — But though technical terms be not absolutely necessary, yet where technical terms are employed they shall be taken in their legal and technical sense (e). Lord Hardwicke indeed once added the qualification, "*unless the intention of the testator or author of the trust plainly appeared to the contrary* (f)." But this position has since been repeatedly and expressly overruled, and at the present day it must be considered a clear and settled canon that a limitation in a trust, perfected and declared by

(a) *Moore v. Cleghorn*, 10 Beav. 423; affirmed on appeal, 12 Jurist, 591; *Knight v. Selby*, 3 Man. & Gr. 92; *Challenger v. Sheppard*, 8 T. R. 597; *Yarrow v. Knightly*, 8 Ch. D. 736; and see *Doe v. Cafe*, 7 Exch. Rep. 675; *Watkins v. Weston*, 32 Beav. 238; *Ryan v. Keogh*, 4 I. R. Eq. 357; *Hodson v. Ball*, 14 Sim. 558.

[(b) 44 & 45 Vict. c. 41, s. 51.]

(c) *Holliday v. Overton*, 14 Beav. 467; 15 Beav. 480; 16 Jur. 751; *Lucas v. Brandreth* (No. 2), 28 Beav. 274; *Tatham v. Vernon*, 29 Beav. 604; [*Lysaght v. M'Grath*, 11 L. R. Ir. 142; *Meyler v. Meyler*, 11 L. R. Ir. 522;] *Middleton v. Barker*, 29 L. T. N. S. 643.

(d) *McClintock v. Irvine*, 10 Ir. Ch. Rep. 481; *Brenan v. Boyne*, 16 Ir. Ch. Rep. 87; *Betty v. Elliott*, ib. 110, note; *Re Bayley*, 16 Ir. Ch. Rep. 215; [*Currin v. Doyle*, 3 L. R. Ir. 265;] and see *post*, chap. xxvii. s. 1.

(e) *Wright v. Pearson*, 1 Eden, 125, *per* Lord Henley; *Austen v. Taylor*, 1 Ed. 367, *per eundem*; *Synge v. Hales*, 2 B. & B. 507, *per* Lord Manners; *Jervoise v. Duke of Northumberland*, 1 J. & W. 571, *per* Lord Eldon; *Lord Glenorchy v. Bosville*, Cas. t. Talb. 19, *per* Lord Talbot; *Bale v. Coleman*, 8 Vin. 268, *per* Lord Harcourt; [*Meyler v. Meyler*, 11 L. R. Ir. 522.]

(f) *Garth v. Baldwin*, 2 Ves. 655.

v. Volrain, 68 Ill. 25; see *Padfield v. Padfield*, 68 Ill. 210. Trust is not executed until the full beneficial enjoyment vests; *Kay v. Scates*, 37 Pa. St. 31; *Harley v. Platts*, 6 Rich. 310; *Carradine v. Carradine*, 33 Miss. 698; the legal title does not vest in the *cestui que trust* until the termination of the trust; *Boyd v. England*, 56 Ga. 598.